

26CHCV00287 26CHCV00287

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-07

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Case Number: 26CHCV00287 Hearing Date: July 7, 2026 Dept: F47

Dept. F47

Date: 7/7/26

Case #26CHCV00287

MOTION FOR
RELIEF FROM DEFAULT

Motion filed on 5/1/26.

MOVING PARTY: Defendant Ronald Alcazar

RESPONDING PARTY: Plaintiff 1102-1112 Arroyo Street LLC

RELIEF REQUESTED: An order granting relief from
default.

RULING: The hearing on the motion is continued to
9/11/26.

On 1/21/26, Plaintiff 1102-1112 Arroyo Street LLC
(Plaintiff) filed this unlawful detainer action against Defendants Mr.
Tortilla, Inc.; Anthony Alcazar (Anthony) and Ronald Alcazar (Ronald) regarding
commercial property located at 1104 Arroyo Street in San Fernando, California
(the Premises).

On 2/18/26, default was entered against Mr. Tortilla,

Inc. and Ronald. On 2/27/26, default was entered against Anthony. On 3/4/26, default judgment was entered against Mr. Tortilla, Inc., Ronald and Anthony granting Plaintiff possession of the Premises and a monetary award of \$76,653.92. On 3/16/26, a writ of execution and possession was issued.

On 5/1/26, Ronald, representing himself, filed and electronically served the instant motion seeking an order granting relief from default. The motion was originally scheduled for hearing on 9/11/26, which is the date listed in the caption of the motion. On 5/4/26, the Court denied Ronald's ex parte application for stay of execution and shortening time for hearing on the instant motion. (See 5/4/26 Minute Order). Also, on 5/4/26, Ronald himself, rescheduled the hearing on the instant motion from 9/11/26 to 7/7/26. However, there is no evidence in the court file that Ronald provided notice to Plaintiff of the change in hearing date.

Since there is no opposition or other response to the motion to cure the defect in notice regarding the change in hearing date, the hearing on the motion will be continued to its originally scheduled date of 9/11/26 to ensure that Plaintiff had proper notice and an opportunity to respond.